

TEXAS ADMINISTRATIVE CODE: As in effect on 5/11/2026.

TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.71. Responsibilities of Establishments.

- (a) Each establishment must have the current law and rules book.
- (b) Each establishment is responsible for compliance with the health and safety standards of this chapter.
- (c) An establishment may lease space to an independent contractor who is a practitioner. The lessor to an independent contractor practitioner must maintain a list of all renters that includes the name of renter and the license number of the renter. The lessor must supply the department representative with a list of renters upon request.
- (d) An establishment may lease space to mini-establishment license holders. The lessor must maintain a list of all mini-establishment license numbers and expiration dates and must provide the list to a department representative upon request.
- (e) A mini-establishment license holder must maintain the name, license number, and license expiration date of each person working in the mini-establishment.
- (f) Establishments that lease space to mini-establishments must maintain all common areas.
- (g) Each establishment must comply with the following requirements:
 - (1) a sink with hot and cold running water in an area where services are performed;
 - (2) an identifiable sign with the establishment's name;
 - (3) a suitable receptacle for used towels/linen;
 - (4) a wet disinfectant soaking container, large enough to fully immerse tools and implements;

- (5) a clean, dry, debris-free storage area;
- (6) a minimum of one covered trash container; and
- (7) if providing manicure or pedicure nail services, an autoclave, dry heat sterilizer or ultraviolet sanitizer.

(h) In addition to the requirements of subsection (g):

(1) full-service establishments and mini-establishments must provide the following equipment for each practitioner present and providing services:

- (A) one working station;
- (B) one styling or barber chair; and
- (C) a sufficient number of shampoo bowls. The establishment must have at least one shampoo bowl if the establishment provides shampooing or any service that results in a permanent change to the color or structure of the hair. A mini-establishment providing these services will be in compliance with this rule if the mini-establishment has access to at least one shampoo bowl.

(2) establishments providing manicure services must provide the following equipment for each practitioner present and providing services:

- (A) one manicure station with sufficient lighting;
- (B) one manicure chair or stool; and
- (C) one client chair for each manicure station.

(3) establishments providing esthetician services must provide the following equipment for each practitioner present and providing services:

- (A) one facial bed or chair; and
- (B) one mirror.

(4) establishments providing combination esthetician/manicure services must provide the following equipment:

- (A) the requirements for establishments providing manicure services; and
- (B) the requirements for establishments providing esthetician services.

(5) establishments providing eyelash extension services must provide the following equipment for each practitioner present and providing services:

(A) one facial bed, chair, or massage table, all of which must allow the consumer to lie completely flat;

(B) one lamp;

(C) one stool or chair; and

(D) one mirror.

(6) establishments providing hair weaving services must provide the following equipment for each practitioner present and providing services:

(A) one work station;

(B) one styling chair;

(C) one chair dryer or handheld dryer; and

(D) a sufficient number, no fewer than one in the entire establishment, of shampoo bowls for practitioners providing hair weaving services.

(i) All practitioners acting as independent contractors must have the following items:

(1) a wet disinfectant soaking container, large enough to fully immerse tools and implements;

(2) a clean, dry, debris-free storage area;

(3) a suitable receptacle for used towels/linen; and

(4) a current law and rules book.

(j) In addition to the requirements in subsection (i), practitioners acting as independent contractors must have the following items.

(1) If practicing in a full-service establishment, one work station and one styling or barber chair.

(2) If practicing in an establishment providing esthetician services, one facial bed or chair and one mirror, wall-hung or handheld.

(3) If practicing in an establishment providing manicure services, one manicure station with sufficient lighting, one manicure chair or stool, and one client chair, professional in appearance.

(4) If practicing in an establishment providing eyelash extension services, one facial bed, chair, or massage table that allows the consumer to lie completely flat,

one stool or chair, one lamp, and one mirror.

(k) Practitioners acting as independent contractors must comply with all state and federal laws relating to independent contractors.

(l) Establishments must display in the establishment, in a conspicuous place clearly visible to the public, a notice that a copy of the establishment's most recent inspection report issued by the department is available upon request.

(m) All licensed establishments must display in a conspicuous place clearly visible to the public a sign, acceptable to the department, regarding human trafficking information as required by Texas Occupations Code §1603.356 and this chapter.

(n) An establishment must ensure that all persons performing or offering to perform barbering or cosmetology services at the establishment are properly licensed at all times. An establishment may not allow a person to perform any barbering or cosmetology service for which the person does not hold the required license.

(o) An establishment may not perform or offer to perform any barbering or cosmetology service outside the scope of the establishment's license.

(p) A person may not operate an establishment or school on the same premises, at the same time, as another establishment or school, unless the facilities are separated by walls of permanent construction without an opening between the facilities. This does not apply to mini-establishments or mobile establishments that are operated on the same premises as other establishments.

(q) Each establishment must display a copy of §§83.100-83.115. An establishment may meet this requirement by placing the law and rules book so that it is accessible to all practitioners who work in the establishment.